

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, March 5, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in DADS No. 2022-24620 against SGT Rachid Lora, Tax Registry No. 945927. The case was conferenced on February 11, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of a New York City Police Department Imposed Training for DADS No. 2022-24620, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for disposition purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031983BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

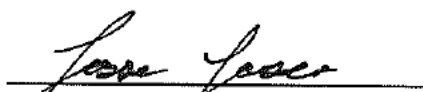
RANK/TITLE SGT	SURNAME, LORA	FIRST RACHID	M.I.	COMMAND 863
SHIELD NO. 810	TAX REGISTRY NO. 945927	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES	DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED	
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Rachid Lora, on or about February 13, 2020, at approximately 1722, while assigned to TB DT04 and on duty, in the vicinity of 14th Street-Union Square Subway Station, New York County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a recording device by grabbing his cellphone without police necessity.	DISMISSED	TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.
2. Sergeant Rachid Lora, on or about February 13, 2020, at approximately 1722, while assigned to TB DT04 and on duty, in the vicinity of 14th Street-Union Square Subway Station, New York County, abused his authority as a member of the New York City Police Department, in that he threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER

05/15/2025
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

7/30/25
DATE



POLICE DEPARTMENT

July 25, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202001377 (Incident Date: February 13, 2020) involving Sergeant Rachid Lora, Tax No. 945927 (DADS Case No. 2022-24620 / PODS Case No. C-031983)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Rachid Lora and determined that no disciplinary action is warranted regarding the allegations of interfering with the use of a recording and threatening to arrest an individual.

In this case, Sergeant Lora was assigned to the 14th Street/Union Square subway station with other officers. At some point, an individual, who was recording, initiated an exchange with the officers by asking what they were doing in the subway station. At this time, the officers were not interacting with any civilians and were simply standing in the station on patrol. The individual then shifted his inquiry and began calling into question the officers' enforcement of future fare evaders. He became increasingly critical of the officer's enforcement of such crimes and taunted them by asking if they felt good about themselves when they issue fare evasion summonses to people who are unable to afford the fare. He even insulted one officer by telling him that he "woke up this morning to write poor people tickets".

Based on the interaction thus far, it is clear that the individual's sole intent was to belittle and provoke these officers. He even stated in his CCRB interview that he does not like cops. When his efforts to incite the officers proved to be unsuccessful, he requested their names and badge numbers. In response, Sergeant Lora approached the individual, who had his camera directed towards the Sergeants face, and re-positioned the camera downward to capture his name and shield. At no point did it appear from the videos that he removed the camera from the individual's hand, or that the individual was prevented from recording. The motion to re-direct the camera lasted 1 -2 seconds. This caused the individual to begin yelling at the officers not to touch him or his camera. Sergeant Lora then lifted his shield up off his chest towards the camera so that the information could be captured.

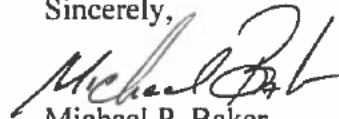
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Website: <http://nyc.gov/nypd>

As this was transpiring, several other individuals in the station stopped to observe the interaction. At least one person was shown on camera to be recording. When this was brought to the individual's attention by the officers, he thanked the recorder and stated to the onlookers that he feared that "the gang of thugs may do something violent." Sergeant Lora's statement that if the individual continued, he would be put in handcuffs and taken back to the precinct was made to diffuse the situation and end the interaction. It is clear that the individual's sole purpose appeared to be to antagonize the officers in the hopes that they would react negatively and he could "catch" them on camera. Instead, the officers remained professional and attempted to de-escalate the situation so that the individual would continue his commute and they could resume their focus on patrolling one of New York City's busiest subway stations during the height of rush hour.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker", written over a horizontal line.

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

July 29, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202001377 (Incident Date: February 13, 2020) involving Sergeant Rachid Lora, Tax No. 945927 (DADS Case No. 2022-24620 / PODS Case No. C-031983)

Commissioner Tisch:

I am writing in response to the letter from Assistant Chief Commanding Officer, Michael P. Baker, dated July 25, 2025. On February 11, 2025, in front of Assistant Deputy Commissioner of Trials Anne Stone, Sergeant Lora accepted the findings of substantiation contained in the Charges and Specifications in return for a recommendation of Training. Assistant Chief Baker stated that after reviewing the CCRB's recommended penalty, you have determined that Sergeant Lora's actions do not warrant discipline regarding the allegations of interfering with the use of a recording and threatening to arrest an individual. The CCRB disagrees with this determination.

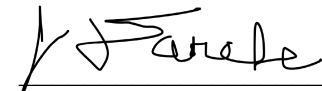
As an initial matter, Sergeant Lora interfered with § 87(2)(b) use of a recording device by unnecessarily touching the camera. After § 87(2)(b) asked for Sergeant Lora's name and shield number, Sergeant Lora presented his shield, but also touched the camera, causing its orientation to shift and fail to clearly capture his name and shield number. Sergeant Lora testified that he touched § 87(2)(b) camera solely to ensure that the recording captured his name and

shield number. However, touching the camera was unnecessary to ensure that his name plate and shield number were captured, as evident in earlier portions of the video where § 87(2)(b) recording captures Sergeant Lora's credentials. Further, after Sergeant Lora touched the camera, the orientation of the camera shifted significantly and no longer captured his name plate, thus completely negating Sergeant Lora's stated goal of ensuring his name and shield number were captured on the video. Given these circumstances, Sergeant Lora's contact with the camera amounted to an unlawful interference, despite Sergeant Lora's assertion that the intent of his actions was benign.

In addition, Sergeant Lora improperly threatened to arrest § 87(2)(b) for disorderly conduct. The video evidence shows that the attention of bystanders was drawn to the encounter between § 87(2)(b) and the officers and that some individuals stopped to record the interaction. However, the video shows that the individuals were not obstructed from walking by, and the video does not show individuals responding to the interaction in any way other than looking and recording. Given that foot traffic was not obstructed and that bystanders merely stopped to observe the encounter, Sergeant Lora did not have probable cause to arrest § 87(2)(b) for disorderly conduct or any other offense, and he was therefore not justified in threatening to arrest him.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Sergeant Lora when he accepted the findings of substantiation and impose upon Sergeant Lora Training for interfering with the use of a recording and threatening to arrest an individual.

Respectfully submitted,



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board

Cc: John D' Alessandro, Esq.